

24STCV33906 24STCV33906

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Case Number: 24STCV33906 Hearing Date: September 22, 2026 Dept: 414

24STCV33906

Yolanda Islas v. General Motors, LLC

Tuesday,

September 22, 2026

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION FOR ATTORNEY'S FEES
(7041)

I.

BACKGROUND

The

complaint alleges that Defendant breached an express warranty issued in connection with Plaintiff's purchase of a 2020 Chevrolet Malibu. On April 10, 2026, Plaintiff filed a notice of settlement. Plaintiffs now move for attorney's fees of \$27,089 in attorney's fees, a .3 enhancement of \$8,126.70, and costs of \$773.30.

Defendant

argues Plaintiff uses template complaints and discovery, and "rote" meet and confer letters. This case is identical to other Song Beverly Consumer Warranty Act cases. Plaintiff performed unnecessary and duplicative tasks. The enhancement is unjustified. Defendant contends that the fee should be reduced by at least \$18,100 for a total of award of \$8,989 in fees and zero in costs.

II. LEGAL STANDARDS

A

party prevailing on a Song-Beverly claim shall be allowed to recover fees, costs, and expenses as part of the judgment. (Civ. Code, § 1794 (d).) The court applies the lodestar method to determine a reasonable fee award, which requires a calculation of the number of hours reasonably spent multiplied by a reasonable hourly rate. The latter is based on the prevailing community rate for similar work. (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140.)

Defendant

does not dispute that Plaintiff is the prevailing party.

III. DISCUSSION

BILLER

EXPERIENCE

RATE PER HOUR

Alexander Khoubian

Founder

\$575

Philip McCabe

10 years

430

Plaintiff's

counsel's requested hourly rates are supported by other minute orders obtained in other cases. The Court finds that the rates are reasonable in these types of cases based on the Court's own experience.

The action was filed on December 20, 2024, and settled approximately one year and four months later. The parties did not engage in any discovery motions. Mr. McCabe spent approximately 4.3 hours drafting the fee motion and related cost matters. The bulk of litigation was

conducted by Mr. Khoubian and a paralegal who charged \$250 per hour.

Defendant's

contention that the "flat fee" of \$3,500 for various communications with the client and other matters incurred before the complaint was filed is not reasonably incurred. Block billing occurs when counsel assigns a single block of time to multiple tasks without itemizing the time attributable to each task. (*Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 279, citing *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1010.)

Although block billing does not, standing alone, require the wholesale rejection of a fee request, the Court may reduce or exclude fees where the manner in which the time is recorded prevents the Court from determining whether the hours claimed were reasonably incurred. (*Mountjoy, supra*, 245 Cal.App.4th at pp. 279–281.) Here, the challenged entry combines multiple tasks into a single undifferentiated time entry without identifying the amount of time devoted to each task. The Court therefore cannot determine what portion of the claimed time was reasonably incurred for compensable work or segregate that time from work for which fees are not recoverable. Because the deficiency prevents the Court from making a reasonable allocation as to this particular entry, the Court excludes the amount claimed for the entry in its entirety.

As Defendant argues, it accounts for 13

percent of the total fees and it is not shown to be actually incurred. Plaintiff's counsel is entitled to reasonable compensation; however, "padding" in the form of inefficient or duplicative efforts is not subject to compensation." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Counsel incurred 7.3 hours to prepare

roughly 12 meet and confer letters regarding various issues. These consist of sending, receiving and reviewing emails. The Court has discretion to reduce requested fees where name partners were doing work that could have been done by lower-billing attorneys or paralegals (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.) Therefore, the Court applies the paralegal's \$250/hour rate x 7.3 hours a reduction of \$512.50 dollars.

Counsel argues that eight hours to review

discovery is outrageous given Defendant's discovery requests are templates. Defendant contends these are not novel issues. Counsel requests that one hour be allotted and not 8 hours. The argument has merit. The Court reduces the discovery fee

request by \$1,750.00.

Defense argues that 2.4 hours to draft a full assessment of litigation trial/strategy and to finalize draft repair technology, contending they are not billable to the client, and should not be billed to GM. There is no basis for the contention that these hours are not billable. Plaintiff's counsel is entitled to fees reasonably incurred.

Plaintiff spent four hours to draft discovery consisting of form and special interrogatories, requests for admission and document requests, which Defendant also argues are derived from templates. The argument has merit and the Court allows 2 hours of work prepared by the paralegal and for review by Mr. Khoubian and reduces the \$1,227.50 request by \$500.00.

Defendant argues 6.8 hours at \$2,025 for excessive miscellaneous correspondence. The Court has reviewed the billing records and find that many of these "receipt and review" or "confirm" are duplicative, for example, confirming mediation 11 times and reviewing document production numerous times. The Court reduces the request by 3.8 hours for a total reduction of \$950.00.

The "unspecified declaration" referred to by defense counsel was in response to the Court's order in support of the request for discovery conference. The fee request is reasonable.

The Court reduces the time spent to prepare this fee motion and reply to five hours (instead of 13.4 hours at Mr. McCabe's rate of \$430.00, totaling \$5,762). This results in a reduction of \$3,612.00.

Defendant's remaining proposed reductions are without merit and are denied.

Plaintiff's request for an enhancement is denied. The court may consider the following factors to augment or diminish the lodestar: (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Id. ["the court determines, retrospectively,

whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.”].)

Plaintiff has not shown that case was so complex to warrant a multiplier.

IV. CONCLUSION

Accordingly, the Court reduces the total fee request of \$27,089 by \$10,824.50 leaving a total approved fee request of \$16,264.50. The Court permits costs as requested by Plaintiff of \$773.30.